

BJC HL7 Converter & SMEC AI Agreement

Pricing & Costs

11 comments across pages 1, 2, 3, 6 and 7. The comments concentrate on the Terms & Conditions section — limitation of liability, IP licensing, source-code escrow, and the in-memory processing claim.

PAGE 1 · SUMMARY TABLE

Anchor: *Implementation (fixed price, covers referrals and results) — \$11,000.*

Question: Is this covering stages 1 and 2? Please make this clear and specific.

PAGE 2 · WHAT'S INCLUDED

Anchor: *Up to 3 rounds of revisions during testing/UAT.*

Comment: Please defined what a revision is? I.e. what if a revision is required because of changes that don't do what was expected/asked.

PAGE 3 · §3 WARRANTY

Anchor: *A 30-day warranty period begins on BJC Health's acceptance of the system after the free trial. During this period: Bug fixes and issues caused by SMEC AI's implementation are resolved at no charge ... Does not cover issues caused by third-party changes.*

Comment: Is the converter going to be a shared platform or will BJC have its own instance? BJC would not want to be paying for fixes that are needed and then applied that other Practices may benefit from.

PAGE 3 · MANUAL WEB UPLOAD

Anchor: *Staff can covert PDF at any time via the web interface-useful for documents that arrive outside the automation (e.g. a faxed letter that didn't auto-process, a one-off scan, a document that landed in wrong inbox.*

Question: Can we add 2FA to the login process & what happens to the document uploaded this way, can SMEC AI confirm that no copy is left on server?

PAGE 3 · WEB DASHOARD

Anchor: *A secure web dashboard is available for staff to manage the automation, monitor its health, and view processing metrics*

Question: If or when not running properly, is there any auto notification, or does this requires someone to login to see?

PAGE 6 · LIMITATION OF LIABILITY

Anchor: *SMEC AI's total aggregate liability under this agreement shall not exceed the total fees paid by BJC Health to SMEC AI in the 12 months immediately preceding the claim. SMEC AI shall not be liable for any indirect, incidental, special, or consequential damages,*

including but not limited to loss of revenue, loss of data, clinical outcomes, reputational damage, or business interruption ...

Comment: Please outline the potential risks of failure here for SMEC AI

PAGE 6 · INTELLECTUAL PROPERTY — LICENCE GRANT

Anchor: *BJC Health is granted a non-exclusive, non-transferable licence to use the system for their internal business purposes for so long as BJC Health maintains an active commercial relationship with SMEC AI ... The hosted-service licence ends 30 days after the last active billing period; the source-code rights described below survive termination.*

Comment: Conflicts with the Source Code on Termination Notice below.

PAGE 6 · INTELLECTUAL PROPERTY — SUBLICENSING

Anchor: *BJC Health may not sublicense, resell, redistribute, or make available the document processing API or any component of the system to third parties.*

Question: What if we need to give it to a 3rd party to make it operate properly?

PAGE 7 · SOURCE CODE ON TERMINATION

Anchor: *On termination by either party (other than termination by SMEC AI for BJC Health's material breach), SMEC AI will provide BJC Health with a full copy of the source code for the BJC Health-specific automation, comprising: the Power Automate Desktop workflow; the web dashboard; the conversion service code as deployed for BJC Health (referrals and results processing logic, HL7 generation, doctor-matching configuration).*

Comment: As per my earlier comments from Intellectual property – Licence Grant & Sublicensing, this needs to reflect the 2 points above.

PAGE 7 · DATA PROCESSING & PRIVACY

Anchor: *Not store, retain, or log patient document content (PDFs are processed in-memory only).*

Comment: This is not clearly enough defined, when considering the retry process, is there a period of potential storage to undertake that process, even if for a short period. If it is retained for that short period, then there is a system failure what steps are in place for it being removed, please define process of for assurance that no patient information is stored.

PAGE 7 · THIRD-PARTY DEPENDENCIES

Anchor: *The system relies on third-party services and infrastructure including AWS (cloud hosting and AI), Microsoft 365 (email and Power Automate), Medihost (server and Genie), and Genie (practice management software). SMEC AI is not liable for outages, changes, or failures caused by these third parties.*

Question: What is the backup process, this is extremely important to have in place (standard is daily), otherwise everything could be lost in an failure.